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#	Case Name	Tentative
1.	2025-1489617 Masaoka vs. ALHV, LLC	Case Management Conference/ Order to Show Cause re: Dismissal
3.	2024-1395904 Ploski vs. Castro	The motion of Brown, Koro & Romag, LLP, counsel of record for Plaintiff Hunter Ploski, to be relieved as counsel for Plaintiff is granted. The court will interlineate the new trial date into the proposed order and delete references to the prior date and will signed the amended order. Upon the signing of the order, counsel shall serve the signed order on Plaintiff and all parties that have appeared. Counsel will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon Plaintiff and all other parties.
4.	2025-1488642 Swannie vs. Swannie	The motion [ROA #47] of defendant Pacific Dealer Center, Inc. for relief from the default entered against it in this action is continued to July 15, 2026, at 10AM, for Pacific Dealer Center to file and serve

		an errata with the Declaration of Mark Swannie referred to and relied on within the motion and supporting memorandum but not actually attached.
5.	2026-1537551 Tortorelli vs. Costa Victoria Healthcare LLC	Defendants Costa Victoria Healthcare, LLC dba Victoria Healthcare and Rehabilitation Center's, The Ensign Group, Inc.'s, and Ensign Services, Inc.'s demurrer to Plaintiff Michelle Tortorelli's Complaint is overruled. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) <u>2nd cause of action for willful misconduct</u> To establish willful misconduct, a plaintiff must prove the basic elements of a negligence cause of action—duty, breach of duty, causation, and damage—as well as the following additional elements that raise the negligent actors' acts or omissions above a basic want of ordinary care: (1) actual or constructive knowledge of the peril, (2) actual or constructive knowledge that injury is a probable, as opposed to a possible, result of the danger, and (3) conscious failure to act to avoid the peril. (<i>Doe v. United States Youth Soccer Assn., Inc.</i> (2017) 8 Cal.App.5th 1118, 1140.) Defendants argue that California law does not recognize an independent cause of action for willful misconduct, but rather finds that willful misconduct is "an aggravated form of negligence," relying on the case of <i>Berkley v. Dowds</i> (2007) 152 Cal.App.4th 518, 526. This case that Defendants rely on do not actually stand for the idea that a demurrer can be sustained on the sole grounds that willful misconduct is a species of negligence and not a separate tort. Rather, in <i>Berkley</i> the court analyzed the pleading requirements of